

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 15, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE, N.A. v. ABNER POMAR
Case No. CL26-01283**

Demurrer

TENTATIVE RULING

Defendant ABNER POMAR demurs to Plaintiff CAPITAL ONE, N.A.'s complaint alleging breach of contract.

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

The complaint at hand sufficiently alleges all elements of breach of contract. It states that on June 5, 2019 the parties entered in a written contract. It attaches a copy of that contract so the terms can be seen. It states Plaintiff's performance via provision of a line of credit and Defendant's breach on February 5, 2025 via nonpayment. It states Plaintiff's damages as \$15,214.92.

Defendant's claim that there is an arbitration agreement in the contract is a matter for a motion to compel arbitration, not a demurrer.

Defendant's demurrer is overruled.

TOP GLASS, LLC v. FACTORY OS, INC., ET AL.
Case No. CU23-04060

Motion to Amend Judgment

TENTATIVE RULING

Judgment Creditor Top Glass LLC's motion to amend the judgment to add Harbinger Production, Inc. and Harbinger Group, Inc. as additional judgment debtors is granted in part and denied in part.

A court has the authority to amend a judgment to add a judgment debtor pursuant to Code of Civil Procedure section 187. (*Carr v. Barnabey's Hotel Corp.* (1994) 23 Cal.App.4th 14, 20.) The procedure is an appropriate method "by which to bind new individual defendants where it can be demonstrated that in their capacity as alter ego of the corporation they in fact had control of the previous litigation, and thus were virtually represented in the lawsuit." (*McClellan v. Northridge Park Townhome Owners Ass'n* (2001) 89 Cal.App.4th 746, 752.) It may be used when a successor corporation is shown to be a continuation of the predecessor corporation or the transaction appears to have been entered into fraudulently to escape liability for debts. (*Id.* at 753-755.)

The court finds that Harbinger Production, Inc. is merely a continuation of Judgment Creditor. Judgment Creditor establishes that Judgment Debtor assigned its assets to Harbinger Production, Inc. while its action was pending against Judgment Debtor. (Decl. of Gabriel, ¶ 6, Exh. 1.) Harbinger Production, Inc. appears to have the same executive staff as Judgment Debtor. (*Id.* at ¶ 7.) Harbinger Production, Inc. shares the same principal address as Judgment Debtor. (*Ibid.*) Accordingly, Harbinger Production, Inc. shall be added as a judgment debtor.